

9 & 10 GEO. 6.

Ministry of Health

Ch. xv.

Provisional Order Confirmation (Mortlake Crematorium Board) Act, 1946.



CHAPTER xv.

An Act to confirm a Provisional Order of the Minister of Health relating to the Mortlake Crematorium Board.

[26th March 1946.]

WHEREAS under the provisions of the Mortlake Crematorium Act 1936 the Minister of Health has made a Provisional Order which needs confirmation by Parliament : 26 Geo. 5. &
1 Edw. 8.
c. xxi.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order of the Minister of Health which is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Order in
schedule
confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Mortlake Crematorium Board) Act 1946.

SCHEDULE.

MORTLAKE CREMATORIUM BOARD.

Provisional Order altering a local Act.

WHEREAS by the Mortlake Crematorium Act 1936 (in this Order called "the Act of 1936") the Mortlake Crematorium Board (in this Order called "the Board") consisting of members appointed by the mayor aldermen and councillors of the metropolitan borough of Hammersmith and the mayor aldermen and burgesses of the respective boroughs of Acton Barnes and Richmond was incorporated for the purposes (inter alia) of building providing maintaining and managing a crematorium:

And whereas by subsection (1) of section 31 (As to additional constituent authorities) of the Act of 1936 it is provided that any local authority desiring to become a constituent authority of the Board and to appoint representatives thereon may give notice thereof to the Board and that the Board may if they think fit apply to the Minister of Health for a Provisional Order constituting such local authority a constituent authority of the Board upon such terms and conditions as may be agreed between the Board and such local authority and that the Minister of Health may make any such Provisional Order accordingly and may thereby make all such amendments of the Act of 1936 and of any Act or Order relating to the local authority who have given the notice as may be necessary or expedient in consequence of such local authority being constituted a constituent authority of the Board:

And whereas the mayor aldermen and burgesses of the borough of Brentford and Chiswick (in this Order called "the Brentford and Chiswick Corporation") have duly given notice to the Board of their desire to become a constituent authority of the Board:

And whereas the Board have made application to the Minister of Health for the issue of a Provisional Order to alter or amend the Act of 1936 in the manner following:

Now therefore the Minister of Health in exercise of the powers given to him by the said section 31 of the Act of 1936 and of all other powers enabling him in that behalf hereby orders as follows:—

Short title and commencement.

1.—(1) This Order may be cited as the Mortlake Crematorium Order 1945 and the Act of 1936 and this Order may be cited together as the Mortlake Crematorium Act and Order 1936 and 1945.

(2) This Order shall come into operation on the date of the Act of Parliament confirming it.

Interpretation.

2. In this Order unless the context otherwise requires "the appointed day" means the first day of April nineteen hundred and forty-six and other words terms and expressions to which meanings are assigned by section 4 (Interpretation) of the Act of 1936 shall have the same respective meanings.

3. As from the appointed day—

(a) the Brentford and Chiswick Corporation shall become a constituent authority of the Board ;

Alteration of
constitution of
Board.

(b) the definition of " the Corporations " in section 4 of the Act of 1936 shall include the Brentford and Chiswick Corporation.

4.—(1) The first election by the Brentford and Chiswick Corporation of members to represent them on the Board shall take place at a meeting of the council of the borough of Brentford and Chiswick to be held before the appointed day or such later date as the Minister may allow and at that meeting one member shall be appointed for every 30,000 inhabitants of the borough of Brentford and Chiswick or part of 30,000 above 30,000 or a multiple of 30,000 according to the population of the said borough in the month of October 1941.

Election of
additional
members of
Board.

(2) The town clerk of Brentford and Chiswick shall as soon as may be after the election mentioned in subsection (1) of this section has taken place certify the appointment to the clerk and such certificate shall be conclusive evidence of the appointment.

5.—(1) The Brentford and Chiswick Corporation shall pay to the Board on the appointed day the sum of five thousand pounds.

Contribution to
capital expenses
of Board.

(2) Forthwith after the appointed day the sum referred to in subsection (1) of this section shall be paid by the Board to the Hammer-smith Council the Acton Corporation the Barnes Corporation and the Richmond Corporation respectively in the proportions in which the said Council and the said Corporations shall have contributed to the expenditure of the Board under section 42 (Expenditure of Board) of the Act of 1936 before the appointed day and the proportions of the said sum so paid shall be applied by the said Council and the said Corporations in such manner as the Minister may approve towards the discharge of any of their debt or otherwise for any purpose for which capital money may properly be applied.

6.—(1) For all purposes preliminary to and including the preparation and issuing of estimates and the apportionment of expenditure between the constituent authorities before the appointed day under section 42 (Expenditure of Board) of the Act of 1936 regard shall be had to the provisions of section 3 (Alteration of constitution of Board) of this Order and for the purposes of subsection (4) of the said section 42 the population of the borough of Brentford and Chiswick shall be calculated in accordance with the proviso to that subsection as in the month of December 1941.

Estimates
and precepts.

(2) Notwithstanding the alteration of the constitution of the Board effected by this Order all precepts made in respect of a financial year occurring before the appointed day shall be as valid in law as if this Order had not been made.

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